



CHAPTER 13

An Act to provide for extending time limits for certain purposes relating to applications for patents; to validate extensions of time under section six of the Patents, Designs, Copyright and Trade Marks (Emergency) Act, 1939, in connection with such applications in so far as any such extensions may have been invalid; and for purposes connected with the matters aforesaid.

[21st March, 1957]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Section twelve of the Patents Act, 1949 (whereby an application for a patent is required to be put in order for acceptance within twelve months from the date of filing of the complete specification, subject to a right for the applicant, on payment of a fee, to have the period extended for a further three months), shall have effect subject to the following amendments, that is to say,—

- (a) in subsection (1) of the section, for the words “twelve months from the date of filing of the complete specification” there shall be substituted the words “such period, beginning with the date of filing of the complete specification, as may be prescribed”;
- (b) after subsection (1) of the section there shall be inserted the following subsection:—

“(1A) The period prescribed for the purposes of the foregoing subsection shall not be shorter than twelve months or longer than four years”;

- (c) in subsection (2) of the section, for the words "not exceeding fifteen months from the date of filing of the complete specification" there shall be substituted the words "ending not later than three months after the date on which the period allowed under that subsection (apart from any extension thereof) would otherwise have expired".

(2) In section ninety-five of the Patents Act, 1949 (which relates to rules made for the purposes of that Act), the following subsection shall be inserted after subsection (1):—

"(1A) Where the Board of Trade have made rules prescribing a period for the purposes of subsection (1) of section twelve of this Act, and subsequently make rules prescribing a different period for those purposes, the subsequent rules may provide that the different period so prescribed shall apply only to applications made on or after a date specified in those rules and that the period previously prescribed shall continue to apply to applications made before that date."

Provisions as
to pending
applications.

2.—(1) In this section—

"the original period", in relation to an application for a patent, means the period allowed under subsection (1) of section twelve of the Patents Act, 1949, apart from any extension thereof, and apart from the preceding section;

"the revised period", in relation to such an application, means the period allowed under subsection (1) of the said section twelve, as amended by the preceding section, but apart from any extension of that period;

"the first year of this Act" means the period of twelve months beginning with the date of the commencement of this Act;

"prescribed" means prescribed by rules made by the Board of Trade under this section.

(2) Subject to the following provisions of this section, the amendments made by the preceding section shall apply in relation to applications for patents made before the commencement of this Act, including such applications in the case of which extensions of time have been granted under section six of the Patents, Designs, Copyright and Trade Marks (Emergency) Act, 1939 (which empowered the comptroller to extend time limits having regard to war circumstances), as they apply in relation to applications made after the commencement of this Act:

Provided that nothing in the preceding section shall be construed as reducing the duration of any extension of time granted under section six of the said Act of 1939.

(3) Where before the commencement of this Act the original period has, in the case of an application, been extended, by virtue of section six of the said Act of 1939, so as to expire on a date (in this subsection referred to as "the present date of expiry")—

- (a) after the commencement of this Act, and
- (b) not less than three months after the end of the revised period, but
- (c) not later than the end of the first year of this Act,

the revised period shall, in the case of that application, be extended so as to expire on such date (not being more than three months after the present date of expiry nor later than the end of the first year of this Act) as may be specified in a notice given by the applicant to the comptroller, if that notice is given and the prescribed fee paid before the date specified in the notice.

(4) Where the revised period, in the case of an application made before the commencement of this Act,—

- (a) is after the commencement of this Act extended under subsection (2) of section twelve of the Patents Act, 1949 (as amended by the preceding section), or under the last preceding subsection, but
- (b) as so extended, would (if not further extended) expire before the end of the first year of this Act,

the comptroller may, if he thinks fit, further extend that period until such date, not being later than the end of the first year of this Act, as he may consider reasonable in the circumstances:

Provided that the revised period shall not be extended by virtue of this subsection to a date more than three months after the date on which apart from this subsection that period would have expired.

(5) Subsection (3) of section twelve of the Patents Act, 1949 (which provides for an extension of time where an appeal is pending or the time for appealing has not expired), shall apply in relation to the revised period as extended by virtue of the preceding provisions of this section as it applies in relation to the period referred to in that subsection.

(6) The Board of Trade may make rules prescribing anything authorised or required to be prescribed by rules under this section; and subsections (1), (3) and (4) of section ninety-five of the Patents Act, 1949, shall apply in relation to rules made under this section as they apply in relation to rules under that Act.

(7) Section ninety-six of the Patents Act, 1949 (which relates to the performance of functions thereunder by the Board of Trade), and section ninety-seven of that Act (which relates to notices), shall apply for the purposes of this section as they apply for the purposes of that Act.

Extension of
time under s. 6
of Patents,
Designs,
Copyright and
Trade Marks
(Emergency)
Act, 1939.

3. Every extension of the time limited by or under the Patents Act, 1949, or the enactments repealed by that Act, for the doing of anything in connection with an application for a patent, being an extension which the comptroller has before the commencement of this Act granted, or purported to grant, by virtue of section six of the said Act of 1939, shall be deemed to have been validly granted by virtue of that section, if apart from this section it was not validly granted by virtue of that section.

Interpretation.

4.—(1) In this Act “the comptroller” means the Comptroller-General of Patents, Designs and Trade Marks.

(2) Except in so far as the context otherwise requires, any reference in this Act to an enactment shall be construed as a reference to that enactment as amended or extended by or under any other enactment.

Short title,
citation, extent
and com-
mencement.

5.—(1) This Act may be cited as the Patents Act, 1957; and the Patents Act, 1949, and this Act may be cited together as the Patents Acts, 1949 and 1957.

(2) This Act shall extend to the Isle of Man.

(3) It is hereby declared that this Act extends to Northern Ireland.

(4) This Act shall come into operation at the end of the period of one month beginning with the day on which it is passed.

PRINTED BY SIR JOHN ROUGHTON SIMPSON, C.B.
Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament
LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 4d. net

PRINTED IN GREAT BRITAIN